NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(Video Conference)

PRESENT: JUSTICE TELAPROLU RAJANI – MEMBER JUDICIAL

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING HELD ON 29.11.2021 AT 10.30 AM

TC/CP. Nos.	CA/IA No.	Section/ Rule	Name of Parties
CA(A) Merger & Amalgamation/13/230/AMR/2021		230	Shri Gisan Steel Castings and Forgings Pvt. Ltd. (Transferor Company) Deccan Ferro Alloys Private Limited (Transferee Company)

s

Counsel for Petitioner(s):

Ries

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

Counsel for Respondent(s):

Ries

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

ORDER

CA(A) Merger & Amalgamation/13/230/AMR/2021 is allowed, vide separate orders.

JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,
AMARAVATI BENCH
AT HYDERABAD

CA (A) Merger & Amalgamation No. 13/230/AMR/2021

In the matter of Section 230 to 232 of the Companies Act, 2013

AND

1. Shri Gisan Steel Castings and Forgings Private Limited
   Plot No.4, Ram Nagar, Chintalapalem,
   Pendurthi, Visakhapatnam,
   Andhra Pradesh – 531173. ... Applicant/Transferor Company

2. Deccan Ferro Alloys Private Limited
   Plot No.8, Chintalapalem,
   Pendurthi (SO), Visakhapatnam,
   Andhra Pradesh – 531173. ... Applicant/Transferee Company

Date of order: 29.11.2021

Coram:

Justice Telaprolu Rajani, Member (Judicial)

Parties present:

For the Applicants: Mr. Santosh Jagtap, PCS

Per: Telaprolu Rajani, Member (Judicial)

ORDER

1. The present Company Application filed under Sections 230 to 232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 seeking permission to dispense with the meetings of the Equity Shareholders, Secured and Unsecured Creditors of the Applicant Companies for consideration of the Scheme of Amalgamation (the Scheme for short) between the Applicant Companies.

2. The Registered Offices of the Applicant Companies are situated in the State of Andhra Pradesh.

3. The Transferor Company was incorporated as a Private Limited Company on 27.09.1989. The Authorised Share Capital as on 31.03.2021 is Rs.1,05,00,000/- divided into 1,05,000 equity shares of Rs.100/- each. The issued, subscribed and paid up equity share capital is Rs.1,05,00,000/- divided into 1,05,000 equity shares of Rs.100/- each. The main objects of the Company are to produce, manufacture, process, refine, import, export, purchase, sell and generally to deal in and to act as agents, stockists, distributors, and suppliers of all kinds of Iron, Steel (whether mils steel, alloy or special steel, ceron steel, tool alloy steel, cost iron, pig iron or any kind of ferrous/non-ferrous metal) steel products of any description, share and size such as castings, forgings, fabrication, steel tubes ad articles, things, compounds preparations connected with the afore-said products and in connection therewith to take on lease or acquire, erect, construct, establish, work operate, and maintain factories, quarries, mines, workshops and other works etc.

4. The Transferee Company was incorporated as a Private Limited Company on 28.02.2000. The Authorised Share Capital as on 31.03.2021 is Rs.12,00,00,000/- divided into 12,00,000 equity shares of Rs.100/- each. The issued, subscribed and paid up equity share capital is Rs.10,69,27,500/- divided into 10,69,275 equity shares of Rs.100/- each. The main objects of the Company are to establish, construct, promote, maintain, organize, undertake, manage, develop, operate and run in India or abroad all kinds of Ferro alloys plant particulars, Ferro Silicon, High Carbon Ferro chrome and other by-products thereof including Ferro manganese, Silicon Carbide Calcium carbide, Ferro Silicon Magnesium, Ferro Silicon Magnesium titanium, Ferro silicon strontium, Ferro silicon Zirconium, Ferro Aluminum, Pig Iron and Steel etc.

5. According to the Applicant Companies they are closely held companies and are under the same management. The Scheme will result in consolidation of the business of the companies resulting in focusing management attention to respective businesses in single entity and unlocking the value of businesses. In order to achieve the aforesaid objectives, the Board of Directors of the Applicant Companies has proposed to amalgamate the Transferor Company with the Transferee Company.

6. The Board of Directors of the Applicant Companies in its respective Board Meetings held on 11.09.2021 has approved the Scheme with appointed date as 01.04.2021, subject to the approval of its shareholders and creditors.

7. There are no proceedings pending under Section 210 to 227 of the Companies Act, 2013, against the Applicant Companies.

8. The **Transferor Company** has filed certificate of the Auditor stating that as on 11.09.2021 there are **11** (Eleven) Equity Shareholders together were holding 10,50,000 equity shares of the Transferor Company and they have given their consent by way of affidavits.

9. The **Transferor Company** has filed certificate of the Auditor stating that as on 11.09.2021 there are no **Secured and Unsecured Creditors** in the Transferor Company.

10. The **Transferee Company** has filed certificate of the Auditor stating that as on 11.09.2021 there are **13** (Thirteen) Equity Shareholders together were holding 10,69,275 equity shares of the Transferee Company and they have given their consent by way of affidavits.

11. The **Transferee Company** has filed certificate of the Auditor stating that as on 11.09.2021 there are **9** (Nine) Secured Creditors having

together a debt of Rs.43,69,27,553/- of the Transferee Company and they have given their consent by way of affidavits.

12. The **Transferee Company** has filed certificate of the Auditor stating that as on 11.09.2021 there are **39** (Thirty Nine) Un-Secured Creditors having together a debt of Rs.11,15,39,993/- of the Transferee Company and they have given their consent by way of affidavits.

13. Heard the submissions made in this regard by the Practicing Company Secretary for the Applicant Companies and perused the documents filed.

14. The **Equity Shareholders** of all the Applicant Companies have given consent affidavits agreeing to the Scheme and hence the meeting of the **Equity Shareholders** of all the Applicant Companies are dispensed with, in terms of Section 230(9) of the Act.

15. The **Secured Creditors** of Transferee Company have given consent affidavits agreeing to the Scheme and hence the meeting of the **Secured Creditors** of both the Transferee Company is dispensed with, in terms of Section 230(9) of the Act.

16. The **Un-Secured Creditors** of Transferee Company have given consent affidavits agreeing to the Scheme and hence the meeting of the **Un-Secured Creditors** of the Transferee Company is dispensed with, in terms of Section 230(9) of the Act.

17. Since there are no **Secured Creditors** and **Un-Secured Creditors** in the Transferor Company, there is no need to conduct the meetings of the Secured and Un-Secured Creditors.

18. In compliance of sub-section (5) of Section 230 of the Act and Rule 8 of the Companies (CAA) Rules, 2016, the applicant company shall send notice under sub section (3) of Section 230 read with Rule 6 of the Rules with a copy of the Scheme, the

explanatory statement and the disclosures mentioned in Rule 6 to (a) the Central Government through the Regional Director, South Eastern Region; (b) the Registrar of Companies, Andhra Pradesh; (c) the Income Tax Authorities; and (d) the Official Liquidator. The said notices be sent either by Registered Post or by Speed Post or by Hand Delivery at the Offices of the authorities as required by sub rule (2) of Rule 8 of the Rules. The aforesaid authorities, who desire to make any representation under sub section (5) of section 230 shall send the same to this Tribunal within a period of 30 (thirty) days from the date of receipt of such notice, failing which it shall be deemed that they have no representation to make on the proposed Scheme.

19. With the above directions, the Company Application i.e. CA(A) Merger & Amalgamation No. 13/230/AMR/2021 is disposed of.

TELAPROLU RAJANI
Member (Judicial)

Kaladhar